

serious driving offense in the 25 year look back period,

- Deny their applications for five years beyond their statutory revocation period if the applicant's license was revoked for an alcohol- or drug-related offense; or two additional years if the applicant's license was revoked for a reason other than an alcohol or drug related offense;
- Restore the applicant's license after that additional period as a "restricted" license limiting the applicant's driving to, for example, travel to and from work or medical visits; and
- Require an interlock device on the vehicle driven by the applicant for five years from the date of issuance of the licensing document. The interlock requirement applies to those motorists who were approved after the five-year waiting period.
- **End the Reduction of Mandatory Suspension or Revocation Periods:** Previously, drunk drivers whose licenses have been revoked or suspended twice within a 25-year period could get their full driving privileges back in as little as seven weeks by completing DMV's Impaired Driver Program. DMV's new regulations will ensure that those drivers cannot obtain their driving privileges until their full term of suspension or revocation has ended.

Zero Tolerance for Drivers Under Age 21

The legal purchase and possession age for beverages containing alcohol in New York State is 21. Under the state's "zero tolerance" law, it is a violation for a person under 21 to drive with any BAC that can be measured (.02 to .07). After a finding of violation is determined at a DMV hearing, the driver license will be suspended for six months. The driver then must pay a \$100 suspension termination fee and a \$125 civil penalty to be re-licensed. For a second Zero Tolerance violation, the driver license will be revoked for at least one year or until the driver reaches 21, whichever is longer.

Illegal Purchase of Beverages Containing Alcohol

When you use a driver license or Non-Driver ID card as proof of age to illegally purchase beverages that contain alcohol, state law requires the suspension of your driver license or privilege to apply for a license.

Open Container Law

It is a traffic infraction for a driver or passenger in a motor vehicle on a public highway, street or road to drink a beverage containing alcohol or to possess an open container containing an alcoholic beverage. It is also a traffic infraction for a driver or passenger in a motor vehicle on a public highway, street or road to consume marijuana/cannabis. The penalty for a first conviction is a fine up to \$150, a mandatory surcharge, a crime victim assistance fee, and possible imprisonment of 15 days. Additional offenses within 18 months bring higher penalties. The law exempts passengers in vehicles like stretch limousines and other vehicles that display a commerce certificate or permit issued by the U.S. Department of Transportation or the NYS Department of Transportation.